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25-CIV-08165 CASTULO EDEN VERDUZCO MARTINEZ VS. X-PRESS GLAZING LLC, ET AL.
LINE 7

CASTULO EDEN VERDUZCO MARTINEZ
X-PRESS GLAZING LLC A CALIFORNIA LIMITED LIABILITY COMPANY

ANNA COUGHLIN

DEFENDANT: APOLONIO RAMOS'S MOTION TO QUASH SERVICE OF SUMMONS

TENTATIVE RULING:

Defendant Apolonio Avendanos Ramos' Motion to Quash Service of Summons is DENIED for the reasons provided below.

"Compliance with the statutory procedures for service of process is essential to establish personal jurisdiction." (*Rios v. Singh* (2021) 65 Cal.App.5th 871, 880; see *Renoir v. Redstar Corp.* (2004) 123 Cal.App.4th 1145, 1152.) A defendant may challenge a purported attempt to serve process and move to quash service of summons. (Code of Civ. Proc., § 418.10, subd. (a)(1).) On such a motion, the plaintiff bears the burden of establishing compliant service of process by a preponderance of the evidence. (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1160.) Here, Plaintiff Castulo Eden Verduzco Martinez carries this burden.

According to the proof of service, the manner of service was substituted service. (Aug. 18, 2026 Declaration of Anna Coughlin ("Coughlin Decl."), exh. A, § 5b.) A summons may be served in this manner "[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served[.]" (Code Civ. Proc., § 415.20, subd. (b)(1).) "Ordinarily, two or three attempts at personal service at a proper place and with correct pleadings should fully satisfy the requirement of reasonable diligence and allow substituted service to be made." (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 373.)

The process server's declaration states that he made three attempts to serve Ramos personally at Defendant Apolonio Avendanos Ramos' residence before leaving the papers with Ramos' mother after the third attempt. (Coughlin Decl., exh. A, p. 3.) Given that courts are "to construe the process statutes liberally to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant[.]" the Court finds the three attempts shown here sufficiently demonstrate reasonable diligence. (*Espindola v. Nunez* (1988) 199 Cal.App.3d 1389, 1393.)

To complete substituted service on a natural person, a copy of the summons and complaint must be left "at the person's dwelling house ... in the presence of a competent member of the household ... who shall be informed of the contents thereof ... and ... thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc., § 415.20, subd. (b).)

The declaration states that the process server left a copy of the summons and complaint with Ramos' mother at Ramos' dwelling house, informed of the general nature of the papers, and then mailed copies to

the same address. (Coughlin Decl., exh. A, pp. 1, 4.) The Court finds this shows that service was completed as required by statute.

The only argument in opposition to this proof is a conclusory statement that the process server served the papers “without following the guidelines on how to properly serve the summons.” (Dec. 11, 2025 Motion, p. 3, l. 2.) The motion does not identify what these guidelines are or specify in what manner the process server did not follow them. More importantly, the validity of service depends only on compliance with law, not ‘guidelines.’

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-CLJ-00451 WELLS FARGO BANK, N.A. VS. CHRISTOPHER A BERG

LINE 8

WELLS FARGO BANK, N.A.
CHRISTOPHER A. BERG

STEPHANIE RAMOS
PRO PER

PLAINTIFF: WELLS FARGO BANK'S MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s Motion for an Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted is DENIED without prejudice. It appears from the proof of service that Defendant was served by mail, but the mailing did not include the defendant's apartment number (which is included on the Proof of Service of the summons and in the Court's file). Accordingly, and in light of the lack of opposition, the Court has no way of knowing whether the papers were actually delivered to Defendant.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
